

Policy Briefing on the Distribution of Digital Accessibility Responsibility at SF State

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Executive Summary

SF State operates under layered legal obligations to provide accessible programs, services, and ICT to people with disabilities, rooted in Section 504, Section 508, Titles I and II of the ADA, California Government Code §11135, and CSU policy under EO 1111 and the ATI Coded Memorandum. These laws impose two parallel duties: reasonable accommodation, operationalized through DPRC and HR, and program accessibility, operationalized through the units that own institutional ICT. This paper proposes three principles for distributing responsibility: accessibility sits with the party closest to the capacity to remediate; where that party cannot remediate, responsibility rises to the institution; and where coordination across multiple owners is required, that coordination sits with SFBRN ATI.

This paper was prepared to support cabinet-level decision-making about how SF State distributes digital accessibility responsibility across its organizational units. It does not propose specific office-by-office assignments as those decisions sit with campus leadership. Rather, it provides the legal grounding and conceptual framework leadership needs to make those decisions defensibly. Final allocation decisions, and any legal questions arising from this analysis, should be directed to SF State's General Counsel.

Major Laws and Policies

The Rehabilitation Act

The Rehabilitation Act was enacted in 1973 to expand federal vocational rehabilitation programs for people with disabilities and, in Sections 501, 503, 504, and 508, to prohibit disability discrimination in federal employment, federal contracting, federally funded programs, and federal ICT respectively. The Rehabilitation Act is grounded in the U.S. Constitution's Spending Clause, which gives the federal government authority over how it spends its own money.

Section 504

Prohibits disability discrimination by any program or activity receiving federal financial assistance and requires those recipients to provide reasonable accommodations and [academic adjustments](#) to enable qualified individuals with disabilities to participate in and benefit from the program. Responsibility for enforcement sits with the federal agency disbursing funding. For SF State, the primary enforcer is the Department of Education's Office for Civil Rights. Other agencies, particularly the Department of Health and Human Services for research-funded programs, also have enforcement authority over their own funding streams.

Section 508

Enacted in 1986, Section 508 requires federal agencies to ensure that the information and communication technology they **procure, develop, maintain, or use is accessible** to people with

disabilities. The 1998 amendments responded to the rapid expansion of digital technology in federal operations and the recognition that Section 504's civil rights framework was not, by itself, preventing agencies from deploying inaccessible technology. Section 508 imposes an upstream obligation: rather than addressing barriers through individual accommodations, federal agencies must build accessibility into technology from the point of procurement forward. Technical standards are set by the U.S. Access Board and cover web content, software, hardware, telecommunications, multimedia, and electronic documents.

The Americans with Disabilities Act

The Americans with Disabilities Act was enacted in 1990 to close gaps that the Rehabilitation Act left open. Section 504 reached only programs receiving federal financial assistance, which meant private employers, state and local government services funded entirely by state and local taxes, and much of ordinary commercial and public life sat outside its protections. The ADA extended civil rights protections for people with disabilities across four titles: employment, state and local government services, public accommodations, and telecommunications. Together, these titles establish the broadest disability civil rights framework in U.S. law. Two of those titles apply directly to SF State: Title I covering employment, and Title II covering state and local government programs and services.

Title I

Title I prohibits disability discrimination in employment and is grounded in Congress's Commerce Clause authority. As a public employer, SF State falls inside Title I for all of its employment relationships. Title I prohibits discrimination against qualified individuals with disabilities in hiring, compensation, promotion, training, and other terms and conditions of employment, and requires **employers to provide reasonable accommodations** to qualified employees and applicants with disabilities unless doing so would impose an undue hardship. Enforcement runs primarily through the U.S. Equal Employment Opportunity Commission, with concurrent enforcement under California's Fair Employment and Housing Act through the California Civil Rights Department.

Title II

Title II prohibits disability discrimination by all state and local government entities, regardless of whether they receive federal funds, and is grounded in Section 5 of the Fourteenth Amendment, which gives Congress authority to enforce equal protection against state and local governments. As a public university operated by the State of California, SF State falls squarely inside Title II. Title II prohibits discrimination across all public-entity programs, services, and activities and requires effective communication with people with disabilities. Enforcement runs primarily through the Department of Justice Civil Rights Division, with concurrent enforcement authority for the Department of Education's Office for Civil Rights in higher education contexts.

California Government Code §11135

Originally enacted in 1977 and **amended in 2003 to incorporate Section 508 standards**, CA code §11135 prohibits disability discrimination by any program or activity that receives state financial assistance and requires those state-funded entities to ensure their information and communication technology meets Section 508 accessibility standards. Enforcement runs through the California Civil Rights Department and through private actions in California Superior Court.

CSU Executive Order 1111 and the ATI Coded Memorandum

Where the federal and state laws above establish what the institution (the university) is required to do, [CSU Executive Order 1111](#) and the [ATI Coded Memorandum](#) establish how the California State University system implements those requirements across its twenty-three campuses. Issued by the Chancellor's Office, EO 1111 articulates the Board of Trustees' policy that **CSU information technology resources and services must be accessible to all students, faculty, staff, and the general public regardless of disability**. The ATI Coded Memorandum operationalizes that policy through the [Accessible Technology Initiative](#), a systemwide framework that distributes accessibility responsibility across academic programs, student services, ICT procurement, instructional materials, and web content, supported by an annual reporting process that documents campus progress against defined success indicators. **Together, EO 1111 and the ATI Coded Memorandum translate the institutional duties imposed by Section 504, Title II, and California Government Code §11135 (extending Section 508) into operational requirements** that campus presidents and their executive sponsors are accountable for implementing.

Guiding Principles and Duties

The duties imposed upon SF State to provide access to services for people with disabilities are all rooted, ultimately, in federal statutes and case law. Several foundational principles and ways of thinking about disability access have been made salient by the ongoing advocacy and litigation of disability rights activists and technical leaders. Leaders working in digital accessibility should be able to interpret the often conflicting and ambiguous presentations of inaccessible services through these lenses.

When presented with unique situations regarding disability access, it's important to be able to conduct your own educated analysis. Here are the most important frameworks and ways of thinking about this space to guide us.

Effective Communication — The civil rights baseline. Communications with people with disabilities must be as effective as communications with people without disabilities. This is the durable standard under both Title II and Section 504, regardless of what specific technical standards exist. It's outcome-oriented: did the person with a disability actually get equivalent access?

WCAG — The technical conformance standard for web content, to be enforced at level 2.1 AA by [Title II in 2027](#). Operationalizes effective communication for digital content by providing measurable success criteria. This is what scanners check against and what regulators codify. Section 508 currently requires level 2.0 and would apply to all non-web or mobile based ICT.

Equivalent Facilitation — The principle underlying TAAP. When fully conforming ICT isn't available, the institution must provide an alternative pathway that delivers the same information and participation with substantially equivalent timeliness, privacy, independence, and ease of use. This is the standard [§35.205](#) codifies federally and that ATI has operationalized for years.

Reasonable Accommodation — The individualized-access principle. **Where systemic accessibility falls short for a specific person, the institution must provide accommodations or modifications to enable that person's participation**, unless doing so would fundamentally alter the program or impose an undue burden. This is the standard that runs through §504, Title I, Title II, and the CSU accommodation framework disability support offices operationalize.

Universal Design — The proactive design principle. Build environments, products, and services to be usable by the widest range of people without need for adaptation. Universal Design reduces the need for individual accommodations by removing barriers before they're encountered. EO 1111 and the ATI Coded Memorandum explicitly invoke Universal Design as a core implementation principle.

Program Accessibility — The aggregate-access principle from §504. When you look at a program as a whole, it must be usable by people with disabilities — even if not every individual component is. This shifts the analysis from "is this specific page accessible?" to "is the program this page belongs to accessible?" It's the lens that connects individual accessibility decisions to institutional compliance.

Primary Consideration — The user-preference principle from Title II. When determining what auxiliary aid or service to provide, the institution must give primary consideration to what the person with the disability requests. The institution can override that preference only if it can prove an alternative is equally effective. This places weight on the user's expertise about their own access needs.

Disability—(1) a physical or mental impairment that substantially limits a major life activity; (2) a record of such an impairment; or (3) being regarded as having such an impairment.

The Tension Between Program Accessibility, Universal Design, and Reasonable Accommodations

Section 504 and Title II both impose two parallel duties on the institution: **program accessibility**, which requires that institutional programs be accessible in the aggregate, and **reasonable accommodation**, which requires the institution to respond to the specific access needs of specific people with disabilities.

The two duties operate at different levels, one structural and proactive, the other individualized and responsive; and meeting one does not satisfy the other under either statute. An institution that relies primarily on accommodation to meet its accessibility obligations leaves the program accessibility duty unmet, regardless of how well the accommodation function operates. Both duties are non-negotiable; neither substitutes for the other. **Where universal accessibility is insufficient, the DPRC must be ready to provide reasonable accommodations.**

The federal and state laws above establish what the institution must do but say little about how the work should be distributed internally. They impose duties on "the institution" or "the public entity" as a whole and do not assign implementation responsibility to specific offices, units, or roles. That assignment is a question of institutional design, addressed at the system level through CSU Executive Order 1111 and the ATI Coded Memorandum, and at the campus level through decisions campus leadership must make based on the specific structure, scale, and resources of their institution. Within the CSU, and within higher education broadly, the division between program accessibility and reasonable accommodation is already well established: EO 1111 §V.E mandates that each campus maintain an office providing specialized support and services to students with disabilities, and the ATI Coded Memorandum establishes the guidance and requirements for ensuring the accessibility of digital assets each campus procures, develops, and operates.

Defining the Division of Labor

There has been ongoing discussion at SF State about where program responsibility sits for the tasks implementing the overlapping duties above. The shorthand "section 504" and "section 508" has been used to point at a real distinction but does not capture it correctly. §504 is a civil rights statute covering both individual accommodations and program accessibility for participants in federally funded programs — for SF State, primarily students. Title II extends that duty to every member of the public, regardless of funding source, including employees, applicants, and visitors. §508 is a technical standards statute that, through §11135 and ATI, applies to the same institutional ICT §504 and Title II already reach. The same accessibility work typically responds to all four at once, which means a statute-by-statute responsibility map would assign most activities to multiple owners and resolve nothing. The student/non-student distinction matters operationally because SF State serves each population through different channels, DPRC for students, HR for employees, asset owners and SFBRN ATI for ICT assets and the general public. However, this distinction does not produce a clean statute-based allocation of program responsibility.

Leadership is encouraged to approach campus accessibility through a different distinction: **Reasonable Accommodations** versus **Program Accessibility**. The functional division between the two maps cleanly onto organizational responsibility, and CSU policy has already operationalized it. The following table maps the two functions side by side.

Reasonable Accommodation vs. Program Accessibility: Side-by-Side

	Reasonable Accommodation	Program Accessibility
Legal basis	§504 (§104.44 academic adjustments), Title II (§35.130, §35.160 effective communication), Title I (employment), FEHA, EO 1111 §V (students) and §VI (employees)	§504 (§104.43 program accessibility), Title II (§35.130 program access, 2024 web rule), §11135 incorporation of §508, EO 1111 §IV, ATI Coded Memorandum
What triggers the duty	A specific person with a documented disability requests access to a specific program, service, or piece of content	The institution operates a program, service, or asset that members of the public, students, or employees may need to access
Population served	Registered students, employees, applicants, and individuals who have disclosed and engaged with the institutional accommodation process	All users of institutional programs and assets, including students, employees, applicants, members of the public, and individuals who have not disclosed or registered
Temporal orientation	Reactive — responds to specific access needs as they arise	Proactive — builds accessibility into programs and assets before access is needed
Unit of analysis	The individual person	The program, service, or asset in the aggregate
Operational locus	Disability Support Services office (mandated by EO 1111 §V.E); HR for employee accommodations under EO 1111 §VI	Asset owners — ITS, Academic Technology, Library, auxiliary organizations, and academic units that operate their own ICT
Core activities	Eligibility determination and documentation review; interactive process; accommodation planning; alternative media production; sign language interpreting; CART captioning; testing accommodations and proctoring; accessible classroom logistics; assistive technology support;	Accessibility review at procurement; vendor accessibility documentation (VPAT/ACR) evaluation; platform configuration to enable accessibility features; integration testing; automated scanning and monitoring (e.g., Pope Tech, D-PAR); content remediation; faculty and staff training on accessible

	Reasonable Accommodation	Program Accessibility
	case management; grievance and appeal processes	content production; TAAP development and annual review; ATI annual reporting
Documentation produced	Accommodation plans; intake records; interactive process notes; alternative media production records; testing accommodation logs; grievance records	VPATs and ACRs; procurement accessibility evaluations; TAAPs; scan results and remediation logs; training completion records; ATI Annual Report evidence
Standard applied	Equivalent access for this specific individual, given their specific disability and the specific program	WCAG 2.1 AA for web and mobile content under Title II; Section 508 standards for ICT generally under §11135 and ATI; effective communication as the overarching civil rights standard
Defenses available	Fundamental alteration; undue burden; not a qualified individual; accommodation requested is not necessary for access	Fundamental alteration; undue financial and administrative burden; Title II §35.205 minimal impact (operationalized through TAAP); content falls within an exception (archived content, third-party content, individualized password-protected course content)
Failure mode	Individual student or employee denied access; OCR complaint, DOJ complaint, CRD complaint, or private lawsuit alleging failure to accommodate	Class of users denied access; OCR or DOJ systemic complaint, §11135 complaint, Unruh Act lawsuit, or scan-based claim alleging failure to meet technical standards
What success looks like	Each student or employee with a disability receives timely, equivalent access through documented accommodations; appeal processes are available and used appropriately	Institutional ICT and digital content meets WCAG 2.1 AA and §508 standards in the aggregate; non-conforming ICT is documented through TAAP with active remediation; accommodation demand decreases as systemic accessibility improves

SF State's Implementation

At SF State, our Reasonable Accommodations duties are discharged through the Disability Programs and Resource Center. Our section 508/ATI program accessibility duties to procure, develop, use and maintain accessible information and communications technology are dispersed through a handful of departments. The ATI framework is explicit that internal allocation of resources and personnel is a campus-level decision.

Guidance and Requirements Formally Provided:

- The Campus President should appoint an executive sponsor who is tasked to form a steering committee of key stakeholders across the institution.
- How to organize program accessibility priority areas: Web, Instructional Materials, and Procurement.
- A capability maturity model with success indicators telling each campus what must be measured for success.
- Annual planning and reporting requirements.

Campuses have discretion to:

- Prioritize success indicators
- Assign responsibilities to units
- Develop implementations that advance success indicators.

Program accessibility is a duty of the institution as a whole, not of any subordinate office. CSU policy assigns operational responsibility to the campus president (EO 1111), and the ATI annual reporting structure is built around the president's role as the institutional officer responsible for outcomes.

Historically, SF State has centralized ATI Coordination within the Disability Programs and Resource Center, with procurement and web accessibility duties assigned to dedicated staff, while instructional materials accessibility was handled through accommodation and modest faculty training. Academic Technology had looked to the DPRC to provide training and support until the ATI restructure and move to SFBRN. With ATI now folded into the SFBRN, assigning intercampus responsibility is the immediate challenge.

Going forward, program accessibility responsibility should follow ownership of the underlying ICT. The unit or person closest to the capacity to remediate an asset is the unit or person positioned to carry accessibility responsibility for it. Asset owners, however, cannot be expected to also be the subject matter experts on digital accessibility. The SFBRN ATI partially centralizes this expertise on behalf of all asset owners: providing training, account access to systemwide tools, procurement-stage accessibility reviews, TAAP development, outreach, and campus-wide project management for accessibility initiatives. SFBRN ATI must also sit independently of the asset owners for the purpose of evaluating

evidence and assessing program accessibility status, because the resulting Annual Report goes to the campus president as the institutional officer responsible for ATI outcomes. **A systematic, independent evaluation function is what makes the report credible as an institutional certification rather than a self-assessment by the units being assessed.**

A Responsibility Heuristic

- 1) Responsibility for accessibility sits with the party closest to the capacity to remediate. For an asset, that is the party with configuration, authorship, or maintenance authority; for an accommodation, it is the party with the institutional relationship to the person making a request.
- 2) Where the closest party cannot remediate, responsibility rises to the institution, which must provide the means for access to continue while remediation proceeds. The institution discharges this duty through SFBRN ATI, executive resource allocation, or interim accommodation.
- 3) Where program accessibility requires coordination across multiple owners, responsibility for coordination sits with SFBRN ATI under the ATI Coded Memorandum.

On Faculty Responsibilities

Faculty are employees of the CSU and are bound by EO 1111 as a matter of institutional policy. While faculty do not generally carry direct civil rights liability to students or external complainants for inaccessible content, they are subject to institutional accessibility expectations through their employment. The institution is legally responsible for the accessibility of the content faculty produce on its behalf. Where institutions have policies requiring accessible content but do not monitor or enforce them at the faculty level, OCR has found systemic compliance failures.

Digital accessibility is systemic, and the only liable party is the university. Because no individual asset owner has the authority across the university's full ICT footprint, the SFBRN ATI makes distributed asset ownership cohere into the coordinated institutional program accessibility mandated by law.

Closing

What we are collectively responsible for, as a university, is ensuring that SF State meets its institutional duty to provide accessible programs, services, and information and communications technology to students, employees, and members of the public with disabilities. That duty flows from §504, Title I, Title II, §508 via §11135, and the broader civil rights framework established in EO 1111. **Institutional program accessibility is emergent:** it is a property of the university as a whole that no individual asset owner can produce alone. **It is also a collective action problem:** distributed accessibility work does not automatically aggregate into institutional accessibility without a function whose role is to coordinate it. It is ultimately the responsibility of executive leadership to author policy and set expectations for employees of the university to work collectively to meet the institution-wide mandate for program accessibility.

